No. 2025-2026

IN THE

SUPREME COURT OF THE UNITED STATES

William DeNolf,
PETITIONER,

v.

Olympus State University,
RESPONDENT.

ON WRIT OF CERTIORARI TO THE
COURT OF APPEALS FOR THE FOURTEENTH CIRCUIT

BRIEF FOR PETITIONER

QUESTIONS PRESENTED FOR REVIEW

1. Whether the Respondent's admissions policy, which gives preferential weight to female applicants, violates the Equal Protection Clause of the Fourteenth Amendment to the United States Constitution.
2. Whether Respondent violated Petitioner's right to freedom of expression under the First Amendment to the United States Constitution, as applied to the states through the Due Process Clause of the Fourteenth Amendment.

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United States v. Virginia, 518 U.S. 515 (1996)

Urofsky v. Gilmore, 216 F.3d 401, 412 (4th Cir. 2000)

Garcetti v. Ceballos, 547 U.S. 410 (2006)

Circuit Court Cases

Gorum v. Sessoms, 561 F.3d 179 (3d Cir. 2009)

Adams v. Trs. of the Univ. of N.C. Wilmington, 640 F.3d 550 (4th Cir. 2011)

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CONSTITUTIONAL AND STATUTORY PROVISIONS

U. S. Constitution, Amendment I

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

Fourteenth Amendment

U. S. Constitution, Amendment XIV, Section 1

All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

STATEMENT OF THE CASE

This case comes before the Supreme Court after a writ of certiorari from the U.S. Court of Appeals for the Fourteenth Circuit. The Fourteenth Circuit affirmed the District Court's decision in favor of the respondent. *R.* 1.

Plaintiff William DeNolf filed suit against the respondent, Olympus State University, after being denied admission to OSU's Jackson Kelly School of Criminal Justice. *R.* 1. Historically, the School has experienced trends relating to female enrollment that are contrary to ratios of male-female law enforcement officers at respected agencies and criminal justice programs across the nation. *R.* 4. To help remedy this disparity, the School is currently carrying out the Pettus-Cole Policy for admissions, which was instated on July 1, 2022. The Policy grants each applicant an individualized, holistic review process where applicants are assessed through a range of attributes, including sex. The policy's concrete goal is to achieve a 75%-25% male-to-female student body ratio for at least five consecutive years. *R.* 5.

DeNolf was a former part-time professor in the Department of Government and Politics at OSU. *R.* 7. In two classes he taught in the spring of 2023, one on American Constitutional Law and one on Gender and the Law, he taught about subjects such as affirmative action and sex-based discrimination. He was especially excited to work at OSU, given the institution's long-standing commitment to free expression and opposing censorship of students and faculty. However, once he was denied admission to the School, he began to heavily denounce the Policy both inside the classroom and in other settings, such as at a rally called Unity Fest. *R.* 8-9. At that event, which was on-campus and university-sponsored, DeNolf recited a poem critiquing the Policy and affirmative action in general. *R.* 9. Following this performance, which was not well-received by the community, *R.* 10, OSU leadership agreed not to renew DeNolf's teaching

contract. OSU then went on to publicly announce his termination, contacting students, parents, alumni, and donors. DeNolf ultimately argued that his termination of employment resulting from his retaliation against the Policy violated his right to free expression under the First Amendment. *R.* 11.

The Court granted certiorari on two questions. The first is whether the respondent's admissions policy violates the Equal Protection Clause in the Fourteenth Amendment. The second is whether the respondent violated the petitioner's First Amendment right to freedom of expression, which is applied to the states under the Due Process Clause of the Fourteenth Amendment. *R.* 1.

SUMMARY OF ARGUMENT

Olympus State University violated William DeNolf's rights under the Equal Protection Clause of the 14th Amendment with its preferential treatment of female applicants to the School. The Kelly School's Pettus-Cole admissions policy, by design, unconstitutionally gives preferential weight to women in final admissions decisions. Under intermediate scrutiny, the Policy fails the exceedingly persuasive justification requirement which was established in United States v. Virginia. *United States v. Virginia*, 518 U.S. 515 (1996). The Policy fails the exceedingly persuasive justification requirement on three grounds. The first is the lack of a compelling government interest being clearly and measurably advanced by the Policy. Secondly, the School states that their overall goal is to produce leaders in high-level government agencies like DHS and the DOJ, and to increase female law enforcement officers in their graduating class to remedy the historical discrimination against women in the School's admissions processes. However, the Policy's recruitment strategies are not substantially related to this supposed interest due to the lack of narrowly-tailored means being employed. Finally, there are clear stereotypes being put forth through the Policy, implying that female applicants require some kind of "boost" in being able to earn admission to the Kelly School. It implies that women are not able to gain admission to the School on the basis of their own merits and need structural support to succeed in the law enforcement profession.

OSU also unconstitutionally violated DeNolf's freedom of expression by terminating him for protected speech by the First Amendment. Unlike employer-controlled speech prohibited under *Garcetti*, this Court expressly reserved whether that rule applies to academic expression, acknowledging that scholarship and teaching implicate "additional constitutional interests" not captured by ordinary employee-speech doctrine. See *Garcetti v. Ceballos* 547 U.S. 410 (2006).

Because DeNolf's poem and remarks at Unity Fest concerned affirmative action and equality, topics central scholarship and teaching of his expertise, his speech falls within the core of academic freedom consistently recognized by multiple circuits. See *Adams v. Trs. of the Univ. of N.C. Wilmington*, 640 F.3d 550 (4th Cir. 2011); *Demers v. Austin*, 746 F.3d 402 (9th Cir. 2014); *Heim v. Daniel*, 81 F.4th 212 (2d Cir. 2023). OSU's decision to punish DeNolf for controversial views contradicts both these authorities and OSU's own stated mission to encourage exposure to "controversial ideas and perspectives."

DeNolf's speech should instead be governed under the *Pickering–Connick* framework, where his expression remains protected. He addressed affirmative action, a matter of public concern. See *Connick v. Myers*, 461 U.S. 138 (1983). Once speech touches a matter of public concern, the burden shifts to the university to show that its operational efficiency outweighs the employee's right to expression. See *Pickering v. Bd. of Educ*., 391 U.S. 563 (1968). OSU cannot meet that burden. The record shows no disruption to teaching and no interference with university operations. Instead, OSU relied on public criticism and reputational concerns, precisely the type of effects that do not meet the burden of operational dysfunction. See *Rankin v. McPherson*, 483 U.S. 378 (1987). Because DeNolf's remarks did not disrupt institutional functioning, OSU lacked any legitimate basis to discipline him.

His termination therefore violated the First Amendment by punishing core political speech protected by academic freedom.

ARGUMENT

I. The Kelly School's Pettus-Cole admissions policy, which gives preferential weight to female applicants, violates the Equal Protection Clause of the Fourteenth Amendment to the United States Constitution.

The Equal Protection Clause of the Fourteenth Amendment to the U.S. Constitution is meant to guarantee that the law is applied equally to all citizens. The Equal Protection Clause, initially intended to protect newly freed enslaved people in the wake of the Civil War, has been used to challenge discrimination based on race, gender, and other classifications.

Under the Fourteenth Amendment, this Court has specified that a state distinction based on gender must have an exceedingly persuasive justification and employ narrowly-tailored strategies in that justification to be considered constitutional. *United States v. Virginia*, 518 U.S. 515 (1996).

The majority opinion for *Virginia* states that "Virginia and VMI trained their argument on 'means' rather than 'end,' and thus misperceived our precedent." *Virginia*, 518 U.S. at 545. This ultimately demonstrates that VMI's creation of VMIL failed the exceedingly persuasive justification requirement by overly focusing on the means of excluding women rather than sufficiently justifying why this exclusion was necessary in accomplishing VMI's end goal, which was to train citizen-soldiers. *Virginia*, 518 U.S. at 545. This precedent points to the need for narrow tailoring because it shows that institutions must not only identify an important governmental objective but also ensure that the methods used to achieve said objective precisely advance it without resorting to blatantly exclusionary tactics. Also in *Virginia*, the Court argued that the creation of VMIL created an unjust categorical exclusion from the quality of educational instruction provided by VMI. *Virginia*, 518 U.S. at 516. Applying that doctrine to this case, the Policy could have been more narrowly tailored in such a way that no categorical exclusion took place. The School could have deployed resources that were geared towards stimulating female

applicants' interest while still making them accessible to all applicants regardless of gender. Overall, the means must be carefully crafted to not unnecessarily restrict opportunities based on gender as to not violate the Equal Protection Clause.

In this case, the Kelly School does not present such a justification, as it fails to both employ narrowly-tailored means in carrying out this policy and present a compelling, realistically measurable government interest.

A. Under intermediate scrutiny, the Pettus-Cole Policy fails the exceedingly persuasive justification requirement that a classification policy have the goal of furthering an important governmental objective and its means be substantially related to that objective.

1. The Policy's methods of stimulating female applicants do not constitute a measurable, important government interest.

The School's stated objective with the Pettus-Cole Policy is to enhance national security measures through greater diversity in the law enforcement profession. However, this objective in itself is too general and broad to pass the "exceedingly persuasive justification" standard. This is because there is no clear, quantifiable way to measure whether the Pettus-Cole policy advanced the objective of a stronger police force in a concrete, evidence-based manner.

The Respondent touts the pipeline of graduates of the School to the FBI's Counterterrorism unit and the Department of Homeland Security as proof that their mission is directly related to national security. However, the School puts forth no substantive reasoning as to why the admission of more female applicants is likely to result in greater community trust or improved national security outcomes. It instead simply assumes this connection due to generalizations around the benefits of gender diversity. This kind of generalization about a specific group's innate abilities or talents with no evidentiary basis were ruled unconstitutional in *Virginia*. *Virginia*, 518 U.S. at 516. Therefore, in this case the School's reasoning for the Policy is

unfounded, and there is no plausible link presented between the female-preferential policy and stronger law enforcement across the nation.

2. The Policy's recruitment strategies are not substantially related to the government interest the School has put forth due to the lack of narrowly-tailored means being employed.

OSU's policy does not pass the narrowly-tailored standard under intermediate scrutiny review and employs clearly inequitable tactics when it comes to the recruitment of male or female applicants. It involves special bonuses and preferential incentives for female applicants. These include fee waivers for 80% of all female applicants, scholarships specifically designated for female applicants, special female-only admissions workshops which included admissions advice that male applicants did not have access to, and free school hoodies for the first 500 women who applied. *R*. 5. Under these measures, the school did not adopt a narrowly-tailored approach to stimulate interest among female applicants. These measures show a clear disparity in how male and female applicants were treated.

These incentives went beyond just mere encouragement for female applicants. Rather, they constituted tangible advantages helping women to get ahead in the admissions process. These clear disparities manifested into an applicant's gender being considered as a deciding factor in many cases, although the School asserts that this was not ever the case. During cross-examination by DeNolf's attorneys, two admissions officers familiar with the policy directly stated that if DeNolf had been a woman he would have been accepted. This is explicit, substantial evidence which demonstrates that DeNolf's qualifications for admissions alone were up to par, or maybe even exceeded, the School's standards. However, because of the nature of admissions being inherently zero-sum, his spot was given up to a female applicant who may have had comparatively similar or less competitive test scores and overall qualifications. These two

testimonies undeniably illustrate that DeNolf's male identity was the singular factor that ultimately prevented him from earning admission.

Overall, OSU could have employed more narrowly-tailored means to achieve its goal of gender diversity in its police academy. This court recognizes sex as a quasi-suspect class. *Virginia*, 518 U.S. 515. As such, a truly narrowly-tailored policy would not give preferential treatment to one sex in the final decision-making process.

Examples of narrowly-tailored practices could include additional preparatory materials or workshops designed to encourage female applicants, such as mentorship programs or informational sessions with current female students. These opportunities would pass the narrowly-tailored standard so long as they remained accessible to all students regardless of sex. To ensure further compliance with this standard, while employing the aforementioned means the School could have also refrained from considering sex as a deciding admissions factor as it currently does.

B. The Policy perpetuates unconstitutional stereotypes around women's capabilities in the law enforcement profession.

1. These types of identity-based stereotypes were ruled unconstitutional in *Virginia*.

This court in *Virginia* rejected overly broad sex-based generalizations about the different talents of men and women. VMI asserted that women would not be able to succeed in the school's academically rigorous environment, perpetuating the stereotype that women were inherently less equipped to handle advanced higher education and have certain "tendencies". *Virginia*, 518 U.S. at 517. For example, "[m]ales tend to need an atmosphere of adversativeness," while "[f]emales tend to thrive in a cooperative atmosphere." *Virginia*, 518

U.S. at 541. VMI's expert on educational institutions additionally testified, "I'm not saying that some women don't do well under [the] adversative model. Undoubtedly there are some [women] who do"; but educational experiences must be designed "around the rule," this expert maintained, and not "around the exception." VMI ultimately asserted that the women would prefer a less rigorous and challenging educational model offered by VWIL. This Court ultimately found that this was a broad generalization with no evidentiary basis, and that this generalization was invalid due to there being no clear, undisputable characteristics around "the way women are." *Virginia*, 518 U.S. at 550.

These types of gender-based judgments about people who have historically been likely to experience discrimination are unconstitutional under the Equal Protection Clause based on the precedent in Mississippi University for Women v. Hogan. In that case, the Court stated, "State actors controlling gates to opportunity, we have instructed, may not exclude qualified individuals based on "fixed notions concerning the roles and abilities of males and females." Mississippi Univ. for Women v. Hogan, 458 U. S. 718, 724 (1982) *as cited in Virginia*, 518 U.S. at 517.

In this case, the same kind of stereotypes are perpetuated and further the idea that women need assistance or some kind of "boost" in being able to earn admission to the Kelly School. It implies that women are not able to gain admission to the School on the basis of their own merits and need structural support to succeed in the law enforcement profession. This idea in itself is inherently biased, making VMI's attempt to create a new school better suited for female officers not permissible under the 14th Amendment.

II. Olympus State University violated William DeNolf's First Amendment right to freedom of expression by terminating him for protected speech made as a private citizen on a matter of public concern.

The First Amendment to the United States Constitution guarantees that "Congress shall make no law… abridging the freedom of speech." This protection, which extends to public universities through the Fourteenth Amendment, prohibits government employers from punishing employees for engaging in protected expression. When a public university disciplines a faculty member for speech on issues of public concern, this Court must carefully balance the interests of the speaker, the institution, and the broader constitutional value of open debate in academic spaces.

This case presents an opportunity for the Court to reaffirm that academic freedom occupies a unique place within the First Amendment. OSU dismissed DeNolf for expressing his personal views on affirmative action and equality, topics central to the national political and legal discourse. Because his speech concerned scholarship or teaching, was delivered outside his teaching duties, addressed issues of public concern, and caused no material disruption to university operations, his termination violated his First Amendment right to free expression..

A. This Court Left Open Whether Garcetti Applies to Academic Speech

To determine whether *Garcetti v. Ceballos*, 547 U.S. 410 (2006), applies to DeNolf's speech or bars First Amendment protection for a university professor's speech as a whole, it must be demonstrated that DeNolf's speech was related to scholarship or teaching. This Court expressly declined to apply *Garcetti* to academic settings that concern this kind of speech because it understood that teaching, scholarship, and public expression of faculty members,

especially when addressing issues of national debate, are imperative to the functioning of academic institutions.

1. Garcetti's "Official Duties" Rule Does Not Extend to University Faculty

In *Garcetti v. Ceballos*, 547 U.S. 410 (2006), this Court held that when public employees make statements "pursuant to their official duties," those statements are not protected by the First Amendment. *Id*. at 421. Under this Court's rationale, because speech made as part of a public employee's job belongs to the employer, not the employee, public institutions must retain flexibility to manage internal operations efficiently.

However, this Court in *Garcetti* explicitly reserved whether its holding applies to university professors, recognizing that "expression related to academic scholarship or classroom instruction implicates additional constitutional interests that are not fully accounted for by this Court's customary employee-speech jurisprudence." *Id*. at 425. That reservation reflects a historical understanding that higher education operates within a constitutionally protected sphere concerning the marketplace of ideas. The teaching and scholarship of university faculty are not merely internal employment functions, they are expressions of professional expertise and the execution of instruction essential to democratic life.

In this specific case, OSU recognized the historical and imperative role of academic institutions as reflected in a statement in OSU's handbook that reads: " We do not condone shielding students from controversial ideas and perspectives. Students will not be warned about speakers whose remarks may be controversial, nor will faculty be required to issue trigger warnings before exposing students to class materials. As a public university, it is our role and mission to foster the free exchange of ideas." Under OSU's own statement, controversial speech

such as the one delivered by DeNolf at Unity Fest is an aspect of core academic speech imperative to the spread of new ideas and free expression.

Applying *Garcetti* to academic speech such as DeNolf's would undermine traditional academic freedom and transform the university from a marketplace of ideas into a regulated workplace. The Constitution does not permit a public university to punish faculty members simply because their views are controversial or politically incorrect.

2. Circuit Precedent Confirms That Garcetti Does Not Apply in the Academic Context

Following this Court's majority opinion in *Garcetti*, numerous circuit courts have consistently upheld that *Garcetti* does not apply to speech related to scholarship, teaching, or public commentary by university professors and that such speech is protected under academic freedom. This Court should follow the persuasive authority of these circuit court decisions.

The Fourth Circuit in *Adams v. Trustees of the Univ. of N.C. Wilmington*, 640 F.3d 550 (4th Cir. 2011), held that *Garcetti* "would not apply in the academic context of a public university." *Id*. at 22. The court explained that Professor Adams's columns and public lectures criticizing university policies were not internal employee communications but citizen speech on political and social issues. The Fourth Circuit reasoned that "applying *Garcetti* to the academic context could place beyond the reach of the First Amendment much speech that lies at its core." *Id*.

Likewise, the Ninth Circuit in *Demers v. Austin*, 746 F.3d 402 (9th Cir. 2014), concluded that *Garcetti* "does not — indeed, consistent with the First Amendment, cannot — apply to teaching and academic writing that are performed 'pursuant to the official duties' of a teacher and professor. *Id*. at 15.. Instead, such speech must be analyzed under *Pickering v. Board of*

Education, 391 U.S. 563 (1968), which balances the interests of the employee in speaking as a citizen against the government's interests in promoting efficiency. The court emphasized that academic freedom is "a special concern of the First Amendment" and that "if applied to teaching and academic writing, *Garcetti* would directly conflict with the important First Amendment values previously articulated by the Supreme Court." *Id*. at 14.

Most recently, the Second Circuit reaffirmed this principle in *Heim v. Daniel,* 81 F.4th 212 (2d Cir. 2023). The court explained that "it cannot reasonably be disputed" that Garcetti left the question open and that the Supreme Court's reservation "means that *Garcetti* does not bind us in academic freedom cases." *Id*. at 32. The Second Circuit reasoned "*Garcetti* leaves undisturbed our own pre-*Garcetti* authority in cases involving scholarship and teaching by professors at public universities" and such cases remain subject to the *Pickering* framework. *Id*. at 30.

Taken together, these cases form a clear national consensus: academic speech is not governed by *Garcetti*. Faculty commentary on political, social, or institutional issues, even when controversial, is protected under academic freedom. To hold otherwise would endanger the intellectual independence and expertise of professors. The rulings under *Adams*, *Demers*, and *Heim* recognize the clear constitutional principle that academic speech, whether in the classroom, in scholarly settings, or in public discussion, merits distinct First Amendment protection, and therefore DeNolf's expression is entitled to full First Amendment protection.

B. DeNolf's speech is protected under *Pickering* and *Connick*

Under the framework of *Pickering* and *Connick,* a public employee's speech is protected if (1) the speech addressed a matter of public concern and (2) the employer's efficiency interests do not outweigh the employee's expressive rights. *Pickering v. Bd. of Educ.*, 391 U.S. 563, 568 (1968); *Connick v. Myers*, 461 U.S. 138, 146–47 (1983). Each factor favors DeNolf.

1. DeNolf's Speech Addressed a Matter of Public Concern

Under *Connick*, speech involves a matter of public concern if it can "be fairly considered as relating to any matter of political, social, or other concern to the community." *Id*. at 146. The determination depends on the "content, form, and context" of the expression. *Id*. at 147. DeNolf's speech satisfies all three elements.

The content of his poem and remarks criticized affirmative action and sex-based preference policies, issues of ongoing constitutional and political debate. The form of his expression came in a public performance and discussion at Unity Fest, an open forum designed to foster discussion about equality and inclusion. The context centered around an event sponsored by the student government, attended by students, faculty, and community members, and aimed to promote open dialogue.

The stated mission of Unity Fest was to "promote campus-wide unity regardless of nationality, religion, race, sex, or sexual orientation," which underscores the public nature of DeNolf's expression. DeNolf's poem advanced that mission by inviting discussion about the role of government or state policy in achieving equality, specifically when he called for "students to rise up and challenge inequality whatever form it takes and wherever they find it."

DeNolf's expression exemplifies the type of civic participation that *Connick* describes as "speech on public issues occupies the highest rung of the hierarchy of First Amendment values, and is entitled to special protection." *Id*. at 145. His remarks contributed to public discourse on one of the nation's most contested policy debates, placing them at the core of protected expression.

2. OSU's Interests Do Not Outweigh DeNolf's Right to Free Expression

Once speech is found to involve a matter of public concern, *Pickering* requires the Court to balance the employee's interest in commenting on public matters against the employer's interest in promoting efficiency and avoiding institutional disruption. The burden rests with the government to demonstrate that the employee's expression materially and substantially interfered with institutional operations. In applying the *Pickering* balancing test in *Rankin v. McPherson*, 483 U.S. 378 (1987) this Court listed a number of factors to consider, such as whether a "statement impairs discipline by superiors or harmony among co-workers, has a detrimental impact on close working relationships for which personal loyalty and confidence are necessary, or impedes the performance of the speaker's duties or interferes with the regular operation of the enterprise." *Id*. 379.

Here, OSU cannot demonstrate such factors. The record shows no evidence that DeNolf's speech interfered with his teaching, damaged working relationships, or impeded the university's functioning. His lectures continued as scheduled, his students completed coursework and attended class, and no internal complaints of discrimination or harassment were filed. The facts show that any adverse reaction came from externally, including from alumni, donors, and commentators, not faculty or students essential to university operational functioning. The facts state that influential alumni withdrew donations; however, this only "would affect OSU's highly ranked athletic programs since recruiting future student-athletes was dependent on these donations." Under *Pickering,* however, such disruptions must affect "the efficiency of its employees' public services" and athletic recruiting does not fall under this definition. *Id*. at 390. Furthermore, the justification for DeNolf's termination was based on complaints from members

of the public who disagreed with his viewpoint, concerns that do not constitute a legitimate justification related to operational functioning and are insufficient as a matter of law.

In *McPherson*, this Court held that speech which "plainly dealt with a matter of public concern" is protected speech under the First Amendment as long as it did not interfere "with the efficient functioning of the office." *Id*. 379. In both *Rankin* and this case, the government sought to punish speech that provoked public criticism but caused no operational harm. The same principle concerns this case: a public employer cannot silence an employee simply because members of the community disagree with his views.

OSU argues that female applications declined after DeNolf's remarks, suggesting reputational harm. But the Constitution does not allow institutions to equate negative publicity with disruption. A decline in applications reflects disagreement among prospective students, not dysfunction within the university concerning enrolled students. If public reaction to controversial speech could justify termination, academic freedom would vanish.

The absence of tangible disruption distinguishes this case from situations in which employee speech undermines essential operations. Under *Pickering*, external criticism and public discomfort, even if correlated with a dip in admissions, do not outweigh the core First Amendment interest in protecting political expression.

Finally, the principle underlying these cases is not merely institutional but democratic. Public universities are meant to expose students to competing ideas, not to shelter them from controversy, as stated in OSU's own handbook. Allowing OSU to dismiss DeNolf for unpopular expression would send a message that faculty must conform to administrative orthodoxy or risk their employment. That outcome is antithetical to the First Amendment and incompatible with the role of higher education and free expression.

CONCLUSION

For the aforementioned reasons, this Court should reverse the judgement of the Fourteenth Circuit.

Respectfully submitted,

Counsel for Petitioner